

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR
HOUSE BILL NO. 1912

By: Pae

COMMITTEE SUBSTITUTE

An Act relating to folic acid; creating the Corn Masa Nutrition Enhancement Act; defining terms; requiring corn masa flour contain certain amounts of folic acid; requiring wet corn masa product contain certain amounts of folic acid; providing exceptions; requiring nutritional labeling; requiring manufacture labeling; providing exceptions; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-1145 of Title 63, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Corn Masa Nutrition Enhancement Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-1145.1 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1 1. "Corn masa flour", also commonly known as masa harina, means
2 a dry flour-type product made from corn that has been treated with
3 slaked lime or otherwise undergoes a process known as
4 nixtamalization;

5 2. "Snack foods" means pre-packaged food items typically
6 intended for immediate consumption, characterized by small or
7 single-serving portions, and designed primarily for consumption
8 between meals. This includes, but is not limited to, products such
9 as chips, crisps, or extruded snack products, often sold
10 individually or in small bags or containers. Snack foods shall not
11 include bulk-packaged corn masa products or other items commonly
12 used as primary ingredients in meal preparation, such as tortillas;
13 and

14 3. "Wet corn masa product" means food manufactured by using an
15 alkali solution with corn kernels to transform them into nixtamal.
16 Wet corn masa product does not include products made with corn masa
17 flour.

18 B. 1. Commencing January 1, 2027, corn masa flour
19 manufactured, sold, delivered, distributed, held, offered for sale,
20 or used as an ingredient in the manufacture of a food product shall
21 contain folic acid at a level of seven-tenths (0.7) milligrams of
22 folic acid per pound of corn masa flour within an acceptable
23 industry standard deviation of error.

1 2. Commencing January 1, 2027, wet corn masa product
2 manufactured, sold, delivered, distributed, held, offered for sale,
3 or used as an ingredient in the manufacture of a food product shall
4 offer for sale product containing folic acid at a level of four-
5 tenths (0.4) milligrams of folic acid per pound of end product
6 within an acceptable industry standard of deviation of error.

7 3. This section shall not apply to certified organic foods.

8 4. In addition to the above exception, grocery stores may offer
9 one non-fortified option to allow for consumer choice.

10 C. Commencing January 1, 2027, corn masa flour or a wet corn
11 masa product shall include both of the following:

12 1. A declaration of folic acid on the nutrition label in
13 accordance with applicable federal law, including, but not limited
14 to, 21 C.F.R., Section 101.9; and

15 2. A declaration that the product contains corn masa flour or
16 was manufactured through a wet corn masa manufacturing process.

17 D. 1. A person or entity may manufacture, sell, deliver,
18 distribute, hold, offer for sale, or use as an ingredient in the
19 manufacture of products corn masa flour that does not meet the
20 requirements of paragraph 1 of subsection B of this section, if they
21 meet the definition of, or are suppliers to, any of the following:

- 22 a. a cottage food operation,
- 23 b. a food facility, or
- 24 c. a small-volume operator.

2. This section shall not apply to snack foods.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-1145.2 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. Nothing in this act shall be construed to require the mandatory addition of synthetic folic acid to any food product when an alternative form of folate is lawfully available and medically appropriate.

B. Any requirement or authorization under this act relating to folate supplementation shall allow the use of alternative, naturally occurring or biologically active forms of folate, including but not limited to L-methylfolate or folinic acid, in lieu of synthetic folic acid.

C. No person, food producer, processor, retailer, or parent shall be penalized, restricted, or otherwise disadvantaged for choosing, producing, selling, or consuming food products that utilize an alternative form of folate or that do not contain synthetic folic acid.

D. Nothing in this act shall be interpreted to override parental rights, informed consent, or individualized medical decision-making, particularly for individuals with known or suspected genetic conditions affecting folate metabolism, including but not limited to methylenetetrahydrofolate reductase (MTHFR) gene variants.

1 E. Any public health guidance issued pursuant to this act shall
2 include clear disclosure that:

3 1. Synthetic folic acid is not metabolized equally by all
4 individuals; and

5 2. Alternative forms of folate exist and may be more
6 appropriate for certain populations.

7 SECTION 4. This act shall become effective November 1, 2026.
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